

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 27, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS - Rocky Case, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Bryan Cook. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Upon request by Mr. Roybal, and pursuant to support received by Mr. Shanor and Mr. Johnson, Agenda Item #12 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Roybal and Mr. Shanor, Agenda Item #18 was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 13, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a public hearing to receive comments and input for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill liquor licenses and microbrewery permits) filed with the City Clerk's Office. City Clerk Carol Intlekofer noted that information contained in the bar and grill renewal liquor license application filed by S & S Wyoming, LLC d/b/a The Suite Bistro, 1901 Central Avenue, reflected non-compliance with state statute renewal criteria. She stated that, pursuant to Wyo. Stat. § 12-4-408, the renewal application must reflect that not less than 60% of gross sales from the preceding 12 months of operation be derived from food services and not alcoholic and malt beverage sales. The Suite Bistro disclosed on its renewal application that approximately 37% of its gross sales was from food sales and 63% was from liquor sales. Ms. Intlekofer clarified the renewal application was not included in those annual licenses involved with the public hearing, and the application would also not be included in the renewal licenses that will be considered for approval at the next Finance Committee and City Council meetings. There being no further

comments or input and purpose of the public hearing having been met, Mayor Orr closed the hearing and referred the applications to Finance Committee.

Mayor Orr opened a public hearing to receive comments and input for a retail liquor license transfer of ownership application filed with the City Clerk's Office for Lincolnway, Inc. d/b/a Lincolnway Liquor, 2825 East Lincolnway, Cheyenne, Wyoming (License currently held by Mason Properties, LLC dba Lincolnway Liquor, 2825 E. Lincolnway, Cheyenne, WY). John Mason, applicant and member of Mason Properties, LLC and Lincolnway, Inc. explained the purpose of requesting the transfer, which is to separate the business operating entity from the real property owner entity. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending the Major Street Plan Official Map 2015, by adding the following roadway segments: Storey Boulevard extension from Highland Drive to Beckle Road and Van Buren Avenue extension from Opal Drive to Storey Boulevard. Joe Patterson, Guardian Development Company and Homes by Guardian, explained they have been working on a master plan for a project involving this area and commented on anticipated road design and connectivity which may not line up with the proposed official map. He requested the item be postponed or recognition be provided that in the future their proposed road design will be considered. Tom Mason, Director, Metropolitan Planning Organization, explained this is a center line survey for the extension and when the developer comes forward with a plat plan, that consideration could be given that alignment of the roadways could be changed as long as it meets the intent of the extension. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Laybourn voting “no”. (#4167)

ORDINANCE – 3rd READING – Amending Section 5.36.030, Public Addresses, Entertainment and Advertising on Streets, of Chapter 5.36, Circuses, Carnivals and Amusement Rides, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Concern was voiced relating to the scenario involving a business not having the ability to stop an undesired activity in front of their storefront. Mr. Shanor moved to amend the last sentence in Section 5.36.030 to read as follows, seconded by Mr. Luna: Persons shall obtain the consent of the owner or manager of the premises in front of the place such person proposes to give such public address, entertainment or advertising. Brief comment followed on business manager's authority to provide consent. Motion carried. Voting “yes” -- Mr. Case, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. White and Mayor Orr. Voting “no” -- Mr. Johnson, Mr. Laybourn and Mr. Roybal. Main motion as amended carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Johnson voting “no”. (#4168)

ORDINANCE – 2nd READING- Repealing Section 10.52.050, Parking for certain purposes prohibited, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Georgia Broyles spoke in

opposition to the ordinance and commented on the initial ordinance serving a positive purpose in the community and how repealing it will affect law enforcement and the Fight the Blight task force. Chief Brian Kozak, Cheyenne Police Department, advised that upon inquiry to Police Community Service Officers (CSO's) he has learned that CSO's use this City Code section to "green tag" vehicles parked illegally on the streets but have not issued official citations. Mr. Roybal reported there was no recommendation on this item from Public Services Committee. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Upon inquiry, Chief Kozak provided further information involving "tagging" vehicles that have a for sale sign in the window and that the "tag" is considered a written warning. Discussion topics included: Wise water conservation program relative to washing vehicles in the street; conducting non-emergency vehicle mechanical repairs; other sections of City Code that may apply for certain violations; nuisance laws and original City areas being more affected by the current restriction than newer subdivisions. Motion failed. Voting "no" -- all members of the governing body present with the exception of Mr. Johnson and Mr. Case who voted "yes".

ORDINANCE – 2nd READING - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending various sections of the Cheyenne Unified Development Code (UDC) to consolidate the LR-1, LR-2, MR-1, MR-2, HR-1, and HR-2 zone districts into LR, MR, and HR zone districts. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Upon inquiry, Eric Hammer, Development office, explained the proposed change had been in the works for quite some time and was an item addressed by the Critical Path Committee a few years ago as something that could be addressed in the future. He provided information on past Planning Commission review and a work session that had been scheduled. Motion carried. Voting "yes" -- all members of the governing body present.

RESOLUTION – Directing the City Clerk to schedule a Public Hearing pursuant to Section 5.12.040(2) of the Cheyenne City Code to receive public comment on violations of City ordinances and State laws pertaining to the sale of alcoholic beverages, which violations have occurred at 'Peppermill Bar and Liquor' and to provide a notice of said Public Hearing to Minglemill, Inc., DBA 'Peppermill Bar and Liquor'. John O'Grady, owner, Peppermill Bar and Liquor, explained that steps have been taken to prevent the issues that led to the violations including purchase of scanners to read patrons' identification, and training for employees. Mr. White moved to adopt, seconded by Mr. Johnson. Motion failed. Voting "no" - all members of the governing body present.

RESOLUTION – Supporting the expedient redevelopment of the building located at 1602 Capitol Avenue, commonly referred to as the historic Hynds Building. David Hatch, developer for the Hynds Building project, commented in support of the resolution and distributed information (on file with City Clerk's office) to the governing body pertaining to the project. He explained the history of the project and voiced parking concerns. He advised that the original request for on-street parking has been removed, and they are requesting 15 spaces be made available in the Spiker Parking Garage in addition to parking in the proposed new area referred to as the "Hole". Christina Bird, Cheyenne Historic Preservation Board, spoke in support of the resolution, and about revitalizing and developing downtown. Jon Jelinek, owner of the Paramount Café and Majestic Building, spoke in opposition of the resolution commenting on density, redeveloping and concentration of businesses downtown. Dale Steenbergen, Greater

Cheyenne Chamber of Commerce, spoke in support of the resolution, and about the complexity of the project due to size and financial commitment, the need for parking, the importance of the project for downtown, investing in historic buildings and economic development. Mr. White moved to adopt, seconded by Mr. Johnson. Mr. White moved to amend by removing the following language from the 10th “Whereas” Clause, “the City is willing to commit up to ten (10) designated on street parking spaces adjacent to the perimeter of the Hynds Building” and the following language from the “Now Therefore” Clause, Section #2, “up to ten (10) designated on-street parking spaces adjacent to the perimeter of the Hynds Building and...” seconded by Mr. Case. Mr. Shanor offered a friendly amendment to the motion on the floor by adding 10 additional designated spaces in the parking garage to make a total of 15. Mr. White, as maker of the motion to amend, and Mr. Case, as second to the motion, concurred with acceptance of the friendly amendment. Discussion continued on a substitute resolution dated 2/27/2017 that addressed changes made at the 2/21/2017 Finance Committee meeting, removing the on-street parking request and changing the designated spots in the parking garage from 5 to 15. Motion to amend failed. Voting “yes” – Mr. Shanor and Mr. Luna. Voting “no” - Mr. Johnson, Mr. Laybourn, Mr. Case, Mr. White, Dr. Rinne, Mr. Roybal and Mayor Orr. Mr. Laybourn moved to amend by substitute resolution dated 2/27/17, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” - all members of the governing body present. Discussion continued and included: executive summary from the Attorney’s office regarding constitutionality of the resolution; timeline and aggressive schedule for the project, and plans for the main level of the building. Mr. Hatch, upon inquiry, provided information on anticipated construction renovation plans and potential tenants for the building. Further discussion continued on the estimated cost of the project, with \$750,000 being the maximum City contribution; return investment; increase of property taxes with the project; opportunity to develop the “Hole”; commitment out of general fund reserves, and partnering with organizations for projects. Upon inquiry, Lois Huff, City Treasurer, explained there is around \$13 million dollars in reserves, of which \$8 million is required to operate for 60 days, leaving approximately \$5 million unencumbered. City Attorney, Sylvia Hackl, explained upon inquiry, that the resolution is a statement of intent only, and that any City financial appropriation will separately approved. Anja Bendel, Cheyenne Leads, explained upon inquiry, that their intent is to acquire the “Hole” property that is made up of 2 parcels, combine them and make the property available for development of a parking lot for the Hynds Building. Discussion continued on Cheyenne Leads’ efforts for providing incentives for businesses in the area, and design elements of the proposed parking lot in the “Hole”. Main motion as amended carried. Voting “yes” - all members of the governing body present with the exception of Mr. Johnson voting no. (#5835)

[CA] RESOLUTION – Re-appropriating the fiscal year 2017 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113. Motion (per consent agenda) carried. (#5836)

[CA] RESOLUTION – Re-authorizing the Purchasing Division of the City of Cheyenne to proceed on a semiannual basis with the sale of surplus property pursuant to W.S. § 15-1-112(a). Motion (per consent agenda) carried. (#5837)

[CA] RESOLUTION – Declaring as surplus a City-owned property located at 2020-2022 Capitol Avenue, legally described as all of Lots 1 and 2, Block 266, Original City, together

improvements thereon, Cheyenne, Laramie County, Wyoming; authorizing the Director of Public Works to issue public notice requesting redevelopment requests for proposals and to proceed with proposed sale of said real property pursuant to Wyo. Stat. §15-1-112. Motion (per consent agenda) carried. (#5838)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Murray Hill Estates 6th Filing, a Replat of Tract 51, Murray Hill Estates, 3rd Filing, and Tract 2, Murray Hill Estates, 5th Filing, Laramie County, Wyoming (located west of and adjacent to Fox Ridge Drive, south of Twin Mountain Road). Motion (per consent agenda) carried. (#5839)

RESOLUTION – Stating the intent to initiate the reclamation of Crow Creek along its watershed within the City limits of the City of Cheyenne; authorizing the execution of a Memorandum of Understanding between the City of Cheyenne, the City of Cheyenne Board of Public Utilities and the Laramie County Conservation District to develop and implement the Reclamation Project; and appointing an Advisory Committee to participate in the project. Jeff Geyer, Laramie County Conservation District, spoke about the project and in favor of the resolution. Bob Mason, Curt Gowdy Chapter of Trout Unlimited, spoke in favor of the resolution. Mr. Roybal moved to adopt, seconded by Mr. Luna. Discussion continued on the importance of revitalizing Crow Creek, Crow Creek being a flood feature, funding sources for the project, design and implementation of the project, developing West Cheyenne and water quality and fishing in Crow Creek. Motion carried. Voting “yes” - all members of the governing body present. (#5840)

[CA] Memorandum of Agreement between the City of Cheyenne, Laramie County, and the Cheyenne Downtown Development Authority for the purpose of creating a Brownfields Cleanup Revolving Loan Fund and associated Loan Review Committee. Motion (per consent agenda) carried. (#6624)

[CA] Professional Service Agreement between the City of Cheyenne and Western Research and Development, Ltd. for the FY2017-18 On-Call Traffic Engineering Services Project. (2011-2014 1% Sales Tax). Motion (per consent agenda) carried (in an amount not to exceed \$90,294.00). (#6625)

[CA] Consideration for entering into a single source contract with Waste Management of Colorado for the disposal of non-hazardous contaminated waste being generated from the Wetlands Pumphouse Project. (1% Specific Purpose Sales and Use Tax). Motion (per consent agenda) carried (in an amount not to exceed \$47,285.00). (#6626)

[CA] Professional Services Contract between the Cheyenne Metropolitan Planning Organization and AVI P.C. for the Whitney Road 10% Corridor Plan. (MPO funds). Motion (per consent agenda) carried. (#6627)

[CA] Contract Modification No. 1 Contract No. 6494 between the City of Cheyenne, Parks and Recreation Department, and Construction Specialists Inc. for partial release of the retainage for the Lions Park Restroom Renovation. Motion (per consent agenda) carried. (#6494)

[CA] Consideration of Bid #S-8-17 for a contract between the City of Cheyenne, Engineering Department, and Pole Mountain Electric, Inc., Cheyenne, for the Dell Range/Yellowstone Signal Upgrade Project. (2015-2018 1% Sales Tax). Motion (per consent agenda) carried (in an amount not to exceed \$138,098.58). (#6628)

[CA] Consideration of Bid #E-12-17 for furnishing 160 2-yard front end load containers for the Sanitation Division. (Solid Waste Management funds). Motion (per consent agenda) carried (approved bid submitted by Wastequip Mfg. Co., LLC, Statesville, NC in an amount not to exceed \$59,480.00).

[CA] Consideration of Bid #E-14-17 for furnishing new landfill portable litter fences Phase 2 for the City's Landfill Division. (Solid Waste Management funds) – referred to Finance Committee.

Under other business:

Mr. Johnson provided an update on several community projects in which he is involved.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:42 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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